

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

HOUSE BILL 4489

By: Townley

AS INTRODUCED

An Act relating to the Corporation Commission; amending Section 1, Chapter 188, O.S.L. 2024 (17 O.S. Supp. 2025, Section 180.13), which relates to Open Meeting Act exemptions; extending exemptions sunset date; providing an effective date; and declaring an emergency.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY Section 1, Chapter 188, O.S.L. 2024 (17 O.S. Supp. 2025, Section 180.13), is amended to read as follows:

Section 180.13. A. While the Oklahoma Corporation Commission is subject to the Oklahoma Open Meeting Act, Corporation Commissioners are exempt from and may discuss administrative, operational, and procedural matters of the Corporation Commission between or among Commissioners, even if a quorum is present, provided the discussions do not address appropriation of Corporation Commission funds and no official action is taken. Corporation Commissioners may not discuss pending legislative matters before the Corporation Commission without complying with the Oklahoma Open

1 Meeting Act. The administrative, operational, and procedural
2 matters authorized under this subsection are limited to the
3 following:

4 1. Scheduling of agenda items to be set before the Corporation
5 Commission for an emergency, regular, or special meeting;

6 2. Prioritizing cases pending before the Corporation
7 Commission;

8 3. Identifying legislative changes, proposed or passed, and
9 their effects on the Corporation Commission;

10 4. Discussing public and media statements;

11 5. Discussing organizational structure;

12 6. Discussing internal processes;

13 7. Discussing staffing needs;

14 8. Receiving informational updates from Corporation Commission
15 staff on the business of the Corporation Commission, as long as such
16 updates do not pertain to pending legislative proceedings of the
17 Corporation Commission;

18 9. Conducting regular staff meetings where discussions of the
19 day-to-day management of the Corporation Commission occur, as long
20 as such updates do not pertain to pending legislative proceedings of
21 the Corporation Commission;

22 10. Interviewing potential employees for the position of
23 Director of Administration and Division Directors; and
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1 11. Assessing performance reviews and duties of the Director of
2 Administration and Division Directors.

3 B. Corporation Commissioners may attend and participate in
4 conferences, training, educational, press, and social events, where
5 the topic of these events is the Corporation Commission, even if a
6 quorum is present, provided that no official action is taken and any
7 discussion of the business of the Corporation Commission is
8 incidental to the event.

9 C. Corporation Commissioners may not discuss any pending
10 legislative proceedings of the Corporation Commission without
11 complying with the Oklahoma Open Meeting Act.

12 D. Corporation Commissioners may attend and participate in
13 meetings and proceedings of the Legislature, even if a quorum is
14 present, provided that no official action is taken.

15 E. As used in this subsection, the term "event" means any
16 matters authorized in subsections A through D of this section.
17 After participating in any events authorized by this section, the
18 Corporation Commission shall be required to provide timely
19 documentation, in the form and manner as determined by a public vote
20 of the Corporation Commission, which may be amended subject to the
21 requirements of this section. This documentation is for the purpose
22 of providing public notice of the subject matter received by or
23 discussed between or among Commissioners, even if a quorum is
24 present, outside of a public meeting. Such documentation shall be

1 posted to the Corporation Commission's website within five (5)
2 business days following the event. However, should the Corporation
3 Commission wish to take potential action on the subject of a
4 disclosed event, such potential action item shall be documented at
5 least forty-eight (48) hours prior to the Corporation Commission
6 considering such item at a public meeting.

7 F. Should the Corporation Commission make any changes to the
8 date, time, or place, including cancellation of any regularly
9 scheduled meeting, the Corporation Commission shall provide notice
10 in writing to the Secretary of State as required by paragraph 8 of
11 subsection A of Section 311 of Title 25 of the Oklahoma Statutes;
12 provided that the Corporation Commission may file the required
13 notice not less than five (5) days prior to the implementation of
14 any such change or cancellation.

15 G. The Corporation Commission shall implement periodic training
16 on the Oklahoma Open Meeting Act for Commissioners and designated
17 staff.

18 H. The provisions of this section shall cease to have the force
19 and effect of law on July 1, ~~2026~~ 2031.

20 SECTION 2. This act shall become effective July 1, 2026.
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SECTION 3. It being immediately necessary for the preservation
of the public peace, health or safety, an emergency is hereby
declared to exist, by reason whereof this act shall take effect and
be in full force from and after its passage and approval.

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